

CONTRACTGUARDIAN — TEST COMMERCIAL AGREEMENT

Purpose: Synthetic test data for clause extraction, classification, prediction resolution, and Indian-law RAG retrieval. This is not legal advice.

1. TERM AND AUTOMATIC RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of twelve months. It shall automatically renew for successive twelve-month periods unless either party gives at least thirty days' written notice before the end of the then-current term.

2. LICENSE GRANT

Subject to this Agreement, the Licensor grants the Licensee a limited, non-exclusive, non-transferable license to use the software solely for internal business operations during the Term.

3. MINIMUM PURCHASE COMMITMENT

The Licensee shall purchase at least 10,000 units during each contract year. Failure to meet the minimum commitment shall not by itself terminate this Agreement.

4. REVENUE AND PROFIT SHARING

The parties shall share net revenue generated from jointly marketed services. The Licensee shall receive sixty percent of net revenue and the Licensor forty percent, calculated quarterly.

5. AUDIT RIGHTS

Each party may, upon reasonable written notice, audit the records of the other party reasonably necessary to verify invoices, revenue calculations, and amounts payable under this Agreement.

6. LIMITATION OF LIABILITY

Except for liabilities that cannot lawfully be limited, neither party shall be liable for indirect, incidental, special, or consequential loss. Each party's aggregate liability shall not exceed the fees paid or payable during the preceding twelve months.

7. LIQUIDATED DAMAGES AND PENALTY

If the Licensee breaches the minimum purchase commitment, the Licensee shall pay reasonable compensation for the resulting breach, subject to a maximum contractual amount of INR 500,000.

8. INDEMNITY

The Licensee shall indemnify and hold harmless the Licensor against losses, damages, reasonable costs, and qualifying third-party claims arising from the Licensee's breach of this Agreement or unlawful use of the licensed software.

9. NON-COMPETE

During the Term and for six months thereafter, the Licensee shall not use confidential information obtained under this Agreement to establish or operate a directly competing service, except to the extent permitted by applicable law.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India, without regard to conflict-of-law principles.

11. DISPUTE RESOLUTION

Any dispute arising out of or relating to this Agreement shall first be discussed in good faith. If unresolved within thirty days, it shall be referred to arbitration in accordance with applicable Indian arbitration law. The arbitration agreement shall be in writing.

12. CONTRACT FORMATION AND LAWFUL PURPOSE

The parties confirm that they have entered into this Agreement voluntarily, with the intention to create legally binding obligations, for lawful consideration and a lawful commercial purpose.

13. CONSENT AND REPRESENTATIONS

Each party represents that its consent to this Agreement has not been obtained through coercion, fraud, undue influence, or material misrepresentation.

14. NOVATION, RESCISSION, AND AMENDMENT

Any substitution, rescission, or material alteration of this Agreement shall require the agreement of the parties in writing.

15. WAIVER AND EXTENSION OF TIME

A party may waive or remit performance of an obligation, in whole or in part, or extend the time for performance, by written notice to the other party.

End of Test Contract